

All India Institute of Medical Sciences Rules, 2019

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Union of India - Act

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All India Institute of Medical Sciences Rules, 2019

Rule ALL-INDIA-INSTITUTE-OF-MEDICAL-SCIENCES-RULES-2019 of 2019

Published on 26 September 2019

Commenced on 26 September 2019

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All India Institute of Medical Sciences Rules, 2019

Published vide Notification No. G.S.R. 693(E), dated 26.9.2019

Last Updated 30th September, 2019

G.S.R. 693(E). - In exercise of the powers conferred by section 28 of the All India Institute of Medical Sciences Act, 1956 (

25 of 1956

) and in supersession of the All India Institute of Medical Sciences Rules, 1958, except as respects things done or omitted to be done before supersession, the Central Government after consultation with the Institute hereby makes the following rules, namely: -

1.

Short title and commencement.

(1)

These rules may be called the All India Institute of Medical Sciences Rules, 2019.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires, -

(a)

"Act" means the All India Institute of Medical Sciences Act, 1956 (25 of 1956

);

(b)

"Director" means the Director of the Institute;

(c)

"Government" means the Central Government;

(d)

"Indian University" means any University established either by the Central Government or any State Government and includes Deemed University;

(e)

"President" means the President of Institute;

(f)

"Section" means a section of the Act.;

(g)

"Standing" or "ad hoc" Committees means respective standing and ad hoc Committees constituted under subsection (5) of section 10 of the Act.

3.

Nomination of representatives of Medical Faculties.

(1)

For the purpose of nomination of members under clause (f) of section 4 of the Act, the Vice-Chancellor of every Indian University having medical faculty may recommend one person from the Medical faculty of the University including the Vice-Chancellor, if the said Vice-Chancellor is a Medical personnel.

(2)

Among the persons so recommended, the Central Government shall nominate four persons as members of the Institute having due regard to different disciplines.

4.

Filling up the casual vacancies.

- Any casual vacancy in the office of members other than ex-officio members shall be filled in accordance with the provisions of section 6.

5.

Allowances of President and members.

(1)

The President or any member shall not be entitled to any allowance or other remuneration except such travelling and daily allowances for which they are eligible under the regulations framed under section 29.

(2)

Nothing in sub-rule (1) shall apply to the Director who may draw the salary and allowance attached to the post of Director.

6.

Standing Finance Committee.

(1)

There shall be constituted a Standing Finance Committee which shall include member representing the Ministry of Finance.

(2)

The following matters shall be referred to the Standing Finance Committee which shall consider them and make its recommendations thereon, namely: -

(a)

annual accounts showing the receipts and expenditure of the Institute together with the audit report thereon;

(b)

budget estimates showing the estimated receipts and expenditure of the Institute;

(c)

all proposals for the creation of new posts;

(d)

all financial matters pertaining to the Institute; and

(e)

all matters relating to the invitation and acceptance of tenders.

7.

Standing committees.

(1)

Every standing committee constituted shall be consisting of a Chairman, a Vice Chairman and not more than seven other members. The Director shall be a member and ex-officio Secretary of each such committee. The Chairman and Vice Chairman and other members of each committee shall be nominated by the Institute.

(2)

In particular, there shall be constituted, a standing committee to be called the Academic committee for the purpose of considering the matters specified in section 14 of the Act, another standing committee to be called the Estate committee for the purpose of considering additions and alterations to buildings belonging to the Institute and other questions relating to their maintenance and use and, a combined Central or Regional committee for recruitment of faculty members.

(3)

The term of office of members of a standing committee shall be five years. An outgoing member shall be eligible for re-nomination.

(4)

A casual vacancy in a standing committee may be filled by the President by nomination.

8.

Ad hoc committees.

(1)

An ad hoc committee may be constituted by the Institute for such purposes as it may consider necessary.

(2)

The Chairman and members of an ad hoc committee shall be nominated by the Governing Body.

(3)

The term of office of members of ad hoc committee shall be terminated as soon as the specific function for which such committee is constituted is completed.

(4)

Any casual vacancy in an ad hoc committee shall be filled by nomination by the Chairman of the Governing Body.

9.

Creation of posts and appointment thereon.

(1)

The Institute may create posts, subject to specific provision in the budget, on scales of pay applicable to similar posts under the Government or on scales of pay approved by the Government, classify them into grades, specify their designation and notify them after approval of Standing Finance Committee, Governing Body and the Government.

(2)

The Director General of Health Services shall be a member of all Selection Committees constituted by the Institute for recruitment to faculty posts.

(3)

Appointment to the post of Director shall be made by the Institute with the prior approval of the Government.

(4)

In the event of the Director proceeding on leave, resigning or retiring, or the post falling vacant in any other eventuality, till such time a new Director is appointed, the President may appoint the senior-most professor to look after the functions of the Director for a period not exceeding six months:

Provided that the Institute may appoint, for reasons to be recorded in writing, any other person for a period not exceeding six months:

Provided further that if the period of such appointment exceeds six months prior approval of the Government shall be taken for such appointment.

10.

Budget Estimates.

- The annual budget showing the estimated receipts and expenditure of the Institute shall be prepared in such form as may be laid down by the Government and shall be submitted to it in triplicate not later than the 15th October each year.

11.

Deposits into and withdrawals from the Fund.

(1)

All moneys credited to the Fund shall be deposited in any branch of the State Bank of India or a nationalised Bank in New Delhi.

(2)

The Fund shall be operated by the Director, and withdrawals from the Fund shall be made by cheques signed by the Director or an officer of the Institute duly authorised by the Director in this behalf.

(3)

All bills for payment shall be pre-checked by the Accounts Officer of the Institute.

12.

Annual statement of accounts.

- The annual statement of accounts including the balance sheet of Institute shall be in such form as may be laid down by the Government. The Statement pertaining to each year ending with 31st March together with the audit report thereon shall be forwarded annually to the Government together with such number of spare copies thereof as may be required by the Government from time to time but not later than the 31st December following.

13.

Annual Report.

- The Annual Report referred to in section 19 of the Act shall relate to the year ending with the 31st March of each year and be submitted to the Government together with 50 spare copies thereof, not later than the 31st August following year.

14.

Returns.

- The Institute shall furnish to the Government returns and information in such form and manner as may be required by the Government.

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